Cyberlaw University

KALINGA UNIVERSITY

Memorandum of Understanding

Between

Kalinga University Faculty of Law, Raipur

And

Cyberlaw Univ

THIS MEMORANDUM OF UNDERSTANDING IS EXECUTED ON 9th DAY, October, 2024 AT NEW DELHI BY AND BETWEEN KALINGA UNIVERSITY FACULTY OF LAW, RAIPUR AND CYBERLAW UNIV, NEW DELHI

PREAMBLE

Kalinga University

Kalinga University is accredited by NAAC with B+ grade and attained NIRF Ranking 2023 in the Top 101-150 universities in the country. It is the only University in Chhattisgarh to have achieved an NIRF ranking in the Top 101-150. It has been established as a multidisciplinary Research-Focused and Student-Centric University with the aim to support learning that will advance human knowledge to develop and educate the leaders of tomorrow in research that tackle the most pressing problems of the state, the country, and the global community.

Cyberlaw Univ

Cyberlaw Univ is an online Cyberlaw education platform, that is specifically dedicated to the study of Cyberlaw and related legal issues. Cyberlaw Univ aims to provide various courses and diplomas that would make the participants more aware about the various legal issues pertaining to cyberspace, Internet and the World Wide Web. Cyberlaw Univ is committed to bring the constantly evolving trends pertaining to legal issues impacting computers, computer systems, computer networks, communication devices as also data and information in the electronic form, to the participants of its various courses. Cyberlaw Univ is committed to the principles of transparency and further growth of enabling structures, frameworks and principles of Cyberlaw. Cyberaw University, as a sole proprietorship, has its office at New Delhi, India.

Gandhi

REGISTRAR
KALINGA UNIVERSITY
KOTNI, NEAR MANTRALAYA,
RAIPUR (CHHATTISGARH)

Cyberlaw University

KALINGA UNIVERSITY

Cyberlaw Univ

- empowers all stakeholders in the digital ecosystem, through impacting education and capacity building on various areas in the intersection of law and technology , including through teacher training, research, course development and collaborative projects;
- supports institutions in their efforts to introduce Cyberlaw and cyberspace related issues in education institutions including higher education institutions and support the integration of relevant and contextual standards and structures;
- encourages students to enhance their skill sets by sensitizing them to best legal and technical standards and practices of nations, companies and organizations that have become successful in dealing with various challenges of cyberspace;
- provides professionals with educational materials adapted to their profession to grow a deeper understanding of law and technology in their context (for them to use such knowledge and skill sets in their practical day to day working);
- contributes to achieving the United Nations Sustainable Development Goals (SDG's).

PURPOSE

I. ***The Purpose*** of this Memorandum of Understanding (hereinafter referred to as MOU, for the sake of brevity) between Kalinga University and "Cyberlaw Univ" is to create synergies and to strengthen the implementation of the objectives of the respective organizations. This MOU is rooted in the shared goal of the partners to promote the cause of Cyberlaw education as also education and capacity building on all aspects concerning Cyberspace, Internet, World Wide Web, , emerging technologies and all elements on the intersection of law, technology and cyber space, through this partnership and is built upon the respective capacities and competencies of the partners.

Based on the above, Kalinga University and Cyberlaw Univ (referred individually as 'party' and jointly as 'parties') enter into this MoU.

REGISTRAR
KALINGA UNIVERSITY
KOTNI, NEAR MANTRALAYA,
RAIPUR (CHHATTISGARH)

KALINGA UNIVERSITY

[illegible] THIS MEMORANDUM OF UNDERSTANDING, [illegible] IN [illegible]

ARTICLE I SCOPE AND CONTENTS OF MOU

[illegible] and [illegible] hereby agree to;

a) Promote products such as online courses of [illegible] for teachers and students and online modules of the courses of [illegible] via [illegible] website and such other technical modules as feasible, with the institutional property rights thereon resting in [illegible];

b) Develop joint projects in courses, research and publications, guest appearances and internships;

c) Collaborate and share credits for each other's courses, wherever applicable;

d) Work together in developing joint and articulation degree programs, diploma certificate programs and courses;

e) Engage in joint teaching, research, or cultural activity;

f) Encourage mobility of students between institutions;

g) Encourage staff professional development;

h) Be committed to sharing and creation of educational materials and resources;

i) Organize lectures and conferences;

j) Invite each other to participate in events and multi-partner projects;

k) Cooperate on other projects of mutual interest;

l) Promote each other's activities in their respective networks and websites, when agreed by both parties;

m) Mention each other as project/cooperation partners on their respective websites and in the actual world;

n) To work together for developing joint proposals for submission to international agencies and organizations; and

o) To work together in establishing bridges and bonds of understanding with other stakeholders in the educational and digital ecosystem

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KALINGA UNIVERSITY

ARTICLE 2- REVENUE SHARING FOR EXISTING COURSES OF CYBERLAW UNIV ERSITY.

a) Both the parties agree that the existing Cyberlaw Univ courses shall be offered to government and non-government officers, policy makers, law enforcement agencies, other governmental and non-governmental agencies, professionals, teachers and students within Kalinga University and outsiders on a revenue share model. The revenue share for jointly offering the existing Cyberlaw Univ courses, shall be split in the ratio of 50:50 respectively (Cyberlaw Univ getting 50% share and Kalinga University Faculty of Law getting 50% share) of course fee revenue received per student/professional. The online admission fees and the evaluation fees will be split as per the aforesaid revenue share ratio (Cyberlaw Univ getting 50% share and Kalinga University Faculty of Law getting 50% share).

b) Any specific activity developed under this Memorandum of Understanding shall be detailed in a subsequent agreement, signed by each institution's authorized signatory, which will describe the scope of the proposed activity, intended outcomes, budget, and responsible departments or individuals. All activities shall be subject to the availability of funds and the approval of each institution's authorized representatives.

ARTICLE 3: PERIOD: This Memorandum of Understanding comes into effect on 09-10-2024 and is renewed every year automatically. It can be modified with mutual consent. In case of dissatisfaction of either party with the implementation of the MOU, it can be dissolved at the end of a calendar year with six months' notice, from either of the parties. In case of the agreement ending, the content accumulated during the time of the contract remains in Cyberlaw Univ online libraries, with copyright and all other intellectual property rights in original literary and artistic works of Cyberlaw Univ subsisting in the same, continuing to vest in Cyberlaw Univ, as per prevailing law.

ARTICLE 4: INTELLECTUAL PROPERTY RIGHTS. The intellectual property rights of any content generated by any party to this MOU shall remain the exclusive property of the said party. The IPR is applicable to both the parties and personnel of both institutions undertaking various activities under this MoU and as may be determined mutually. IPR with respect to any products/ research/ papers/ competitions jointly developed/ organized or any other intellectual property flowing from the implementation of this MoU will reside with the parties as may be mutually agreed, preferably prior to the commencement of the project.

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KALINGA UNIVERSITY

ARTICLE 5:-ASSIGNMENT. No party may assign this Memorandum of Understanding or any rights or obligations under this MOU to any person or entity without the prior written consent of the other parties. Any assignment in violation of this provision is null and void.

ARTICLE 6- GOVERNING LAW & ENTIRE AGREEMENT

(a) This MOU shall be construed and enforced solely pursuant to the laws of India, and the parties agree that this MOU shall be subject to the sole and exclusive jurisdiction of the Court of Delhi located in New Delhi.

(b) This Memorandum of Understanding constitutes the entire agreement and understanding between the parties as to the subject matter hereof and supersedes all prior discussions, agreements and undertakings of every kind and nature between them, whether written or oral, with respect to such subject matter. This Agreement may subsequently be modified only by a written document executed by both parties. The provisions of this Memorandum of Understanding are severable, and if any provision of this MOU is found to be invalid, void or unenforceable, the remaining provisions will remain in full force and effect.

Kalinga University Faculty of Law, Raipur

Authorized Representative

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RAIPUR (CHHATTISGARH)

For Cyberlaw Univ

Authorized Representative

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KALINGA UNIVERSITY

NOW THIS MEMORANDUM OF UNDERSTANDING WITNESSETH AS UNDER:-

ARTICLE 1- SCOPE AND CONTENTS OF MOU

University and 'Cyberlaw Univ ' hereby agree to:

a) Promote products such as online courses of Cyberlaw Univ for teachers and students and online and/or offline courses of Cyberlaw Univ via Cyberlaw Univ website and such other technical modes as feasible, with the intellectual property rights therein vesting in Cyberlaw Univ ;

b) Develop joint projects in courses, research and publications, paper competitions and internships;

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d) Work together in developing Joint and articulated degree programs, diplomas, certificates programs and courses;

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